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कर्मचारी भविष्य निधि संगठन
(श्रम एवं रोजगार मंत्रालय, भारत सरकार)
EMPLOYEES' PROVIDENT FUND ORGANISATION
(Ministry of Labour & Employment, Govt. of India)
मुख्य कार्यालय / Head Office
भविष्य निधि भवन, 14-भिकाजी कामा प्लेस, नई दिल्ली-110 066
Bhavishya Nidhi Bhawan, 14, Bhikaji Cama Place, New Delhi - 110 066.

LC-2(905)2014/GJ
To

26302

Dated 28.09.2015

28 SEP 2015

All Additional Central P. F. Commissioners (Zones)
All Regional P.F. Commissioner,
Regional Offices/Sub Regional Offices

Sub:- Forwarding of important Judgment delivered by Hon'ble High Court of Gujarat at Ahmedabad in SCA NO.4817 of 2011 filed by M/s Kassar Innovative Foods Ltd. – reg.

Sir,

Please find enclosed herewith copies of judgments delivered by Hon'ble High Court, Ahmedabad in the above cited matter.

2. The Hon'ble High Court of Ahmedabad vide its order dated 28.06.2011 in SCA No 4817/2011 dismissed the Petition filed by the establishment M/s Kassar Innovative Foods VS. EPFO and observed that:-

From the matter coming up for consideration it is noticed that normally the employers have a tendency to tire out the adjudicating forums. This could be noticed from the fact that an employer does not appear before the Labour Court of the Industrial Tribunal, allows the matter to proceed ex-parte and after the matter is decided ex-parte, files an application for setting aside that ex-parte order and, when that application is rejected approaches this Court to see that everything is staled. A prayer is made to this Court that petition be entertained and an opportunity be given to the employer to contest the matter on merits.

In the present case, the authorities passed an order Under Section 7A way-back in 2003 and till date i.e 28/06/2011 the authorities are still waiting for the petitioner to pay the PF Dues. This conduct of the employer-petitioner herein cannot be encouraged and therefore this petition is dismissed.

3. It is thus requested to utilize the above order while defending similar cases.

Yours faithfully,

Encl: as above

(M. P. Varghese)
Addl. Central P. F. Commissioner-I (Legal)

28/9/15

IN THE HIGH COURT OF GUJARAT AT AHMEDABAD

SPECIAL CIVIL APPLICATION No. 4817 of 2011

KASSAR INNOVATIVE FOODS

LIMITED - THROUGH DIRECTOR -

Petitioner(s)

Versus

EMPLOYEES PROVIDENT FUND

COMMISSIONER -

Respondent(s)

Appearance :

MR DIPAK R DAVE for Petitioner(s) : 1,

MR BHARAT T RAO for Respondent(s) : 1,

CORAM : HONOURABLE MR.JUSTICE RAVI R.TRIPATHI

Date : 28/06/2011

ORAL ORDER

1. M/s. Kassar Innovative Foods Limited is before this Court praying that 'A writ of mandamus and / or a writ in the nature of mandamus and / or any other appropriate writ, order or direction be issued to quash and set aside the impugned orders dated 03/03/2011, 24/01/2011, 30/06/2003 and 27/11/2003.'

1.1 The present petition is having a history of long drawn litigation. Initially, the authorities passed an order under

Section 7A of the Employees' Provident Fund and Miscellaneous Provisions Act (for short 'the Act') on 30/06/2003. Against that a Review Application was filed under Section 7B. It is the case of the petitioner that without issuing notice to the present petitioner that Review Application came to be rejected by order dated 27/11/2003. The petitioner - company filed an appeal before the appellate authority under the Act, but the same was not entertained and therefore the petitioner had to approach this Court by filing petition being Special Civil Application No.9984 of 2004 which was heard by the learned Single Judge who dismissed that petition by order dated 27/09/2004. Against that the Letters Patent Appeal was filed, but after the same was argued, the same was withdrawn on 06/09/2005 with a view to file Review Application before the learned Single Judge. A Review Application was filed before the learned Single Judge which came to be dismissed on the ground of delay by order dated 09/03/2006.

2. Against that order the petitioner again approached the Division Bench by filing Letters Patent Appeal No.1072 of 2006. The Division Bench granting indulgence, on payment of costs of Rs.10,000/- directed that if an appeal is filed within two weeks, the appellate authority to decide the

3
(122)

same. It is this appeal which is dismissed and the petitioner is before this Court.

3. From the matter coming up for consideration it is noticed that normally the employers have a tendency to tire out the adjudicating forums. This could be noticed from the fact that an employer does not appear before the Labour Court or the Industrial Tribunal, allows the matter to proceed ex-parte and after the matter is decided ex-parte, files an application for setting aside that ex-parte order and, when that application is rejected approaches this Court to see that everything is stalled. A prayer is made to this Court that petition be entertained and an opportunity be given to the employer to contest the matter on merits.

4. In the present case, the authorities passed an order under Section 7A way-back in 2003 and till date i.e. 28/06/2011 the authorities are still waiting for the petitioner to pay the PF dues. This conduct of the employer - petitioner herein cannot be encouraged and therefore this petition is dismissed.

5. Learned Advocate for the petitioner persuades this Court successfully for not imposing any costs.

(RAVI R TRIPATHI, J.)

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